

UNIVERSITY OF MINES AND TECHNOLOGY, TARKWA
STUDENTS REPRESENTATIVE COUNCIL



SLOGAN: SRC!!! READY TO SERVE

THE UMaT SRC REVIEWED CONSTITUTION

Table of Contents

CHAPTER ONE; THE CONSTITUTION	2
ARTICLE 1; NAME	2
ARTICLE 2; SUPREMACY OF THE CONSTITUTION	2
ARTICLE 3; ENFORCEMENT OF THE CONSTITUTION	2
CHAPTER TWO: AIMS AND OBJECTIVES OF THE SRC.....	3
ARTICLE 4; AIMS AND OBJECTIVES OF THE SRC	4
CHAPTER THREE: COMPOSITION AND FUNCTIONS OF THE SRC.....	5
ARTICLE 5; COMPOSITION OF THE SRC	5
ARTICLE 6; COMPOSITION AND FUNCTIONS OF THE EXECUTIVE COUNCIL	5
ARTICLE 7; COMPOSITION AND FUNCTIONS OF THE LA	6
ARTICLE 8; COMPOSITION AND FUNCTIONS OF THE JUDICIAL COUNCIL.....	8
CHAPTER FOUR: DUTIES OF OFFICERS.....	11
ARTICLE 9; DUTIES OF OFFICERS	11
CHAPTER FIVE: COMMITTEES OF THE SRC	16
ARTICLE 10; COMMITTEES OF THE SRC	16
CHAPTER SIX INDEPENDENT COMMISSIONS/COMMITTEES	20
ARTICLE 11; INDEPENDENT COMMISSIONS/COMMITTEES	20
CHAPTER SEVEN: ADMINISTRATION OF FUNDS.....	27
ARTICLE 12; ADMINISTRATION OF FUNDS	27
CHAPTER EIGHT: MEETINGS	29
ARTICLE 13; GENERAL MEETINGS	29
CHAPTER NINE: STANDING ORDERS.....	32
ARTICLE 14; STANDING ORDERS FOR MEETINGS	32
CHAPTER TEN: HONOURARIUM	36
ARTICLE 15; HONOURARIUM	36
CHAPTER ELEVEN: REMOVAL FROM OFFICE	37
ARTICLE 16; REMOVAL FROM OFFICE	38
CHAPTER TWELVE AMENDMENTS	41
ARTICLE 17; AMENDMENTS	41
CHAPTER THIRTEEN: TRANSITION AND HANDOVER.....	43
ARTICLE 18; TRANSITION AND HANDOVER.....	43
CHAPTER FOURTEEN MISCELLANEOUS	44
ARTICLE 19; MISCELLANEOUS	44
CHAPTER FIFTEEN: OATHS OF OFFICERS	48

PREAMBLE

Having absolute belief in the Omnipotent God, the first cause, and mindful of the fact that no Community exists without Laws and Leadership; **We, the students of the University of Mines and Technology, Tarkwa, in order to exercise** that undoubted right; **Desirous** to promote the Students' Welfare, Fraternal Solidarity and Fellowship amongst ourselves, the students of this Country and elsewhere;

Cognisant of the need to seek and promote healthy competition between this University and other Universities and Alumni; **Wholeheartedly determined** to attain the peak of excellence in our Moral, Spiritual, Political, Cultural and Intellectual endeavours;

Do hereby adopt, enact and give to ourselves this constitution and the amended portions as the supreme law of governance of the student body on this twenty-sixth day of May in the year of our Lord two thousand and seventeen (26th May 2017).

CHAPTER ONE**THE CONSTITUTION****ARTICLE 1; NAME**

The legitimate governing body for students shall be known and called the Students' Representative Council of the University of Mines and Technology (UMaT), Tarkwa hereinafter referred to as "SRC".

ARTICLE 2; SUPREMACY OF THE CONSTITUTION

- 2.1 This constitution shall be the supreme law for the governance of all students, clubs, associations, societies, unions in UMaT and any other constitution and/or law found to be inconsistent with any provision of this constitution shall, to the extent of the inconsistency, be null and void.
- 2.2 Notwithstanding clause (1) *supra*, this constitution shall be subject to the constitution of the Republic of Ghana, Laws of Ghana, the University's Statutes, the Act of Parliament establishing this University as well as the SRC and all laws made under its authority.
- 2.3 In the event of a conflict, a provision of this constitution shall take precedence over any provision to the contrary in any JCR or Registered Course Association's constitution to the extent of the conflict.

ARTICLE 3; ENFORCEMENT OF THE CONSTITUTION

- 3.1 Any student who alleges that an act or omission of any person or group of persons: or a constitution, decision, resolution of any body, organization, club, union or association; is inconsistent with, or is in contravention of a provision in this constitution may apply to the Judicial Committee of the Judicial Council for a declaration to that effect.
- 3.2 The Judicial Committee shall for the purposes of such declaration under the clause (1) of this article:
- (a) Make such orders and give such declarations as it may consider appropriate for giving effect or enabling effect to be given the direction so made.

(b) Failure to obey or carry out the terms of an order or direction made under paragraph (a) of this clause shall constitute a violation of this constitution and contempt of the Judicial Committee.

CHAPTER TWO**AIMS AND OBJECTIVES OF THE SRC****ARTICLE 4; AIMS AND OBJECTIVES OF THE SRC**

The SRC, which is the sole body for making representation to the University authorities on behalf of the Students, shall:

- i. Offer a common forum for the discussion of Students' problems and generally develop a Spirit of Solidarity among the Students of this University, other Institutions of higher learning in the country, and elsewhere;
- ii. Promote Academic, Cultural, Social and Sporting activities of the Student body;
- iii. Advise the Student body on matters relating to the general welfare of Students of this University and foster cordial relations with the Senior Common Room;
- iv. Foster closer relation with other Universities, and/or any other Institutions and groups of people elsewhere through affiliation, sports, social, academic and cultural programmes;
- v. Foster healthy relations with the Alumni of the University and
- vi. Formulate such rules and regulations as will promote cordial relationship between Students and/or groups without discrimination on grounds of sex, creed, ethnic origin or course of study.

For purposes of achieving these objectives, the SRC shall organize lectures, debates, publications and such other activities as are necessary, to fulfil these general aims and objectives. The SRC shall celebrate its week which shall fall within the Second semester of the academic year, with the actual date to be fixed by the Executive Committee.

CHAPTER THREE

COMPOSITION AND FUNCTIONS OF THE SRC

ARTICLE 5; COMPOSITION OF THE SRC

The SRC shall comprise-

- (a) The Executive Council
- (b) The Legislative Assembly (hereinafter referred to as **LA**)
- (c) The Judicial Council

ARTICLE 6; COMPOSITION AND FUNCTIONS OF THE EXECUTIVE COUNCIL

6. (1) The **Executive Council** shall be composed of:

(a) The Executive Committee comprising-

- (i) The President
- (ii) The Vice President
- (iii) The General Secretary
- (iv) The Treasurer

(b) The Local NUGS Secretariat comprising-

- (i) The Local NUGS President
- (ii) The Local NUGS Secretary
- (iii) The Women's Commissioner
- (iv) The Local NUGS Treasurer
- (v) One co-opted member, appointed by the Local NUGS President, in consultation with the Local NUGS Secretary and Treasurer

(c) The Faculty Representatives

(d) Hall Presidents of the various JCR(s)

(e) The Non-Residential Students Committee Chairman

(f) ISA President

(g) The Executive Officers, who shall be appointed by the President in consultation with members of the executive committee and shall comprise:

- (i) The Public Relations Officer (PRO)
- (ii) The Assistant General Secretary

6. (2) The **functions** of the **Executive Council** shall be:

- (a) The **Executive Committee** shall be accorded the functions of executing all policies of the SRC. The Vice President, who shall be the running mate of the President, shall be a non-voting member in attendance.
- (b) The **Local NUGS Secretariat** shall;
 - (i) Together with the SRC President and the General Secretary represent the Student body at the National Union of Ghana Students (NUGS).
 - (ii) Furnish the Student body with information on the activities of the NUGS after every NUGS meeting as and when it is available.
 - (iii) Be responsible for the processing of students' loan and other issues concerning the loan scheme
 - (iv) Organize forum(s) on pressing national issues.
 - (v) Perform any other function assigned to them by the SRC.

ARTICLE 7; COMPOSITION, FUNCTIONS AND TENURE OF OFFICE OF THE LA

7. (1) There shall be a Legislative Assembly (LA) of the student body comprising -

- (a) The Speaker (*who shall be appointed by the President-elect subject to the approval of the outgoing LA*).
- (b) The Deputy Speaker (*who shall be elected from amongst the members of LA*).
- (c) The Clerk (*who will be appointed by the Speaker in consultation with the sitting clerk subject to the approval of the incoming LA*).
- (d) One Ghana Muslim Students' Association (GMSA) representative.
- (e) One Students Christian Council (SCC) representative.
- (f) One representative from the Women's Commission appointed by the Women's Commissioner.
- (g) Registered Course Association Presidents.
- (h) Two representatives from Non Residence Students Committee appointed by the Chairman
- (i) ISA Vice President
- (j) Two representatives from the JCR(s) appointed by the JCR President.

(2) The following **procedures** shall be followed the selection of members of the LA

- (a) Subject to the provisions of this constitution, the Legislative Power of the

student body shall be vested in the LA and shall be exercised in accordance with this constitution.

(b) The outgoing Clerk shall request in writing all such members as provided for in clause (1) of this article from the various associations or unions concerned, latest, seven (7) days before the handover of the Executive Council.

(c) Any person, association, club, union, organization or body written to by the Clerk shall forward the names of such representatives qualified to be members of the Legislative Assembly by virtue of clause (1) of this article to the Clerk within four (4) days upon receipt of the request.

(d) For the avoidance of doubt and with the exception of persons with reasons communicated to the Clerk of clause (1) of this article, a person shall not be deemed to be a member of the Legislative Assembly unless his name has been submitted in writing to the Clerk within seven (7) days after the formation of the Legislative Assembly for the next academic year.

(e) A member of the Legislative Assembly shall, before taking his seat in the Legislative Assembly, take and subscribe before the Speaker an oath of membership of the Legislative Assembly as set out in this constitution.

(f) The first sitting of the LA shall not be later than twenty-one (21) days after declaration of election results.

(g) With the exception of the President, all other members of the Executive Committee shall be entitled to participate in the proceedings of the LA and shall be accorded all the privileges of an observer of the LA except that they are **NOT** entitled to vote on any issue.

(3) The **functions** of the **Legislative Assembly** shall be:

(a) It shall concern itself with matters of general policy and other issues referred to it by members and the general student body.

(b) Notwithstanding paragraph (a) *supra* of clause (8), the LA shall on its own initiative consider and make recommendations on any matter provided for in this constitution which is affecting the welfare and interests of students.

(c) It shall determine such issues as are introduced by way of motions as per provisions of standing orders of the Legislative Assembly.

(d) Its appointment committee shall screen and approve all students nominated by the executive council and shall present its report to the LA for approval.

(e) The Legislative Assembly shall have the power to invite any member of the organs of the SRC (except the President and the Chief Justice) and any other

student(s) to answer questions on matters relating to his area of operation or otherwise.

(4) **Tenure of office** of Members of the Legislative Assembly.

(a) A member of the Legislative Assembly shall vacate his seat;

- (i) Upon a dissolution of the Legislative Assembly; or
- (ii) If he is absent, without the permission in writing to the Speaker through the Clerk, and he is unable to offer reasonable explanation to the Judicial Committee, to two (2) sittings in a semester; or
- (iii) If he is expelled from the Legislative Assembly by the Speaker, after having been found guilty of contempt of the LA by the Legislative Assembly.
- (iv) If he resigns from the Legislative Assembly as a member by writing under his hand addressed to Speaker through the Clerk and copied to the Chief Justice.
- (v) If he is removed from office in accordance with chapter eleven (11) of this constitution.

(b) The LA shall stand dissolved at mid-night on the eve of the handover ceremony of the Executive Council.

ARTICLE 8; COMPOSITION AND FUNCTIONS OF THE JUDICIAL COUNCIL

8. (1) There shall be a Judicial Council which shall comprise -

- (a) Judicial Committee
- (b) Appellate Body

(2) **JUDICIAL COMMITTEE;**

(a) There shall be an independent Judicial Committee which shall comprise-

- (i) The Chief Justice who shall be appointed by the SRC President-elect in consultation with the outgoing LA.
- (ii) The Chairmen of the Judicial Committees of the various Halls of Residence.
- (iii) The Chairmen of the Judicial Committees of the various recognized course associations.
- (iv) One representative from the Non-Resident Students Committee.
- (v) No member of the Executive Council and the LA shall serve on the Judicial Committee.

(b) The Judicial Committee shall have **jurisdiction** in the following matters:

- (i) In every matter relating to the enforcement and interpretation of any provision of this constitution.
- (ii) In every matter where it is alleged that a person or group of persons have acted **ultra vires** or abused the powers conferred on him/them by this Constitution or any provision for the time being in force.
- (iii) Its chairperson shall represent the Student body on the University's Disciplinary Committee. All matters involving students and non-student members of the University shall be referred to the Disciplinary Committee through the Judicial Committee.
- (iv) The hearings of the Judicial Committee shall be public except where the committee finds it advisable to dissent. The committee shall have the power to **subpoena** any member of the student body to appear before it and the member shall oblige. However, when the Judicial Committee dissents a public hearing, it shall render a full report of the proceedings by way of publication to the student body.
- (v) The Judicial Committee shall supervise the transfer of power to the new officers.
- (vi) The decision of the committee in all matters shall be by simple majority and final unless otherwise specifically provided in this constitution.
- (vii) The Judicial Committee shall have the power to prescribe any appropriate punishment having regard to the provisions of this constitution provided that the SRC or the general Student Body shall be capable of enforcing the punishment so prescribed.
- (viii) In the exercise of its functions, the committee shall be subject only to provisions of this Constitution and the general University regulations and shall NOT be subject to the control or direction of any person or authority.
- (ix) Notwithstanding any provision to the contrary, the Judicial Committee shall through the SRC, recommend any decision to the appropriate University authorities for implementation.
- (x) It shall appoint an Electoral Commissioner from the Student body who shall conduct all SRC elections.

Tenure of Office for Members of the Judicial Committee.

- (i) A member of the Judicial Committee shall hold office for one academic year unless stated otherwise in this constitution.
- (ii) Any member of the Judicial Committee shall cease to hold office if;
 - He becomes otherwise incapacitated.
 - He becomes a member of any committee or board of the SRC, the Executive Council and the LA
- (iii) The Chief Justice shall cease to hold office if he resigns by writing under his hand addressed to the President of the SRC. However, a member shall resign by writing to the Chief Justice of the Judicial Committee.

(3) APPELLATE BODY;**(a)** The Appellate body shall consist of:

- (i) The Dean of Students Affairs (*who shall be the Chairman*)
- (ii) Chairman and Secretary of the Judicial Committee
- (iii) The Hall Tutor
- (iv) A representative of the aggrieved person

(b) Jurisdiction

- (i) The Appellate body shall have jurisdiction at the students' level (subject to the provisions of this constitution), appeals from a judgement by the Judicial Committee and as such any other appellate jurisdiction as may be conferred on it by this constitution.
- (ii) The Appellate body shall within fourteen (14) days, on receipt of any appeal of judgement, provide its final judgement after the petitioner and respondent have been given the necessary opportunity to defend their issue or cases.
- (iii) The decision of the Appellate body shall be final and adhered to or enforced by the SRC without delay.

CHAPTER FOUR

DUTIES OF OFFICERS

ARTICLE 9; DUTIES OF OFFICERS

9. (1) The President shall:

- (a) Be the Chief Executive Officer in which capacity he shall be responsible for coordinating the functions of the SRC.
- (b) At the beginning of each semester (within the first three (3) weeks) and before the dissolution of the Legislative Assembly deliver to the Legislative Assembly a written address on the State of the Affairs of the SRC.
- (c) Be a member of the University Council. He may appoint representatives to represent students on any other University bodies or committees.
- (d) Present the interest and opinions of the Student Body to the University authorities and NUGS and or any other recognized Institutions as may be determined by the Student Body.
- (e) Summon through the General Secretary and preside over all meetings of the Student Body, Executive Council and the Executive Committee. He shall together with the secretary sign minutes of all Executive meetings.
- (f) Counter-sign all vouchers, cheques and money bills of the SRC.
- (g) See to the implementation of the decisions of the Legislative Assembly.
- (h) In consultation with the Executive Council have the power to appoint Chairman and/or members of all SRC committees.
- (i) Appoint the Speaker subject to the approval of the outgoing Legislative Assembly.
- (j) Appoint the Chief Justice subject to the approval of the outgoing Legislative Assembly.
- (k) Communicate to the Speaker and copied to the Chief Justice a written letter of his intention to travel outside the region before that travel.
- (l) Cast a vote when there is a tie on a decision at Executive Council meetings.
- (m) Assign any extra official duty to any of the executive officers.

- (n) Take disciplinary action against any officer(s) who refuse(s) to perform his (their) duties as stipulated in this constitution and also anyone who shall absent himself from Executive Committee or Council meetings without express permission subject to the approval of the Executive Committee.

(2) The Vice President shall:

- (a) Assume the duties of the President in his absence or inability to act, or on his resignation until such a situation is rectified.
- (b) Be an ex-officio member of all SRC committees, except the independent committees or commissions or otherwise stated in this Constitution.
- (c) Liaise between the JCR's/Halls of Residence, Non-Resident Students and the Executive Committee.
- (d) Perform any other function assigned to him by the President and/or the SRC.
- (e) In the event of more than one (1) person representing Students on the University Disciplinary Committee, he shall join the Chief Justice to serve on the body.

(3) The General Secretary shall:

- (a) Keep accurate and orderly records of all proceedings of the general Student Body, Executive Council and Executive Committee meetings.
- (b) Publish the report of the general Student body meetings, at most one week after each meeting for the benefit or information of the Student body.
- (c) Under the directions of the President summon all meetings; stating agenda, date, time and venue of meeting.
- (d) In consultation with the President, be responsible for conducting all correspondence of the Student body.
- (e) Publish the names of all members of the SRC committees within one week of their formation.
- (f) Be responsible for the day to day running of the SRC office.

(4) The Assistant General Secretary shall:

- (a) Assume the duties of the General Secretary in his absence or inability to act until such a situation is rectified.
- (b) Assist the General Secretary in the day to day running of the SRC office.
- (c) Perform any other duties assigned to him by the SRC and/or General Secretary.

(5) The Treasurer shall:

- (a) Have custody of the SRC's cheques and cashbooks; and keep all monies in the bank.
- (b) Together with the President and the University Finance Officer be the joint signatories to the bank accounts of the SRC and all vouchers, etc. issued in the name of the SRC.
- (c) Have responsibility for all financial accounts and keep true records of all financial transactions and assets of the SRC.
- (d) Present the annual budget of the SRC for the approval by the SRC Executive Council and publish the budget for the information of the general student body subject to the LA.
- (e) Together with the Finance and Development Committee be responsible for all fund raising activities on behalf of the student body.

(6) The Local NUGS President shall:

- (a) Be a representative of the Student body at NUGS meetings.
- (b) Be the Chairman of the Local NUGS secretariat of the SRC.
- (c) Cast a vote when there is a tie on a decision at Secretariat meetings
- (d) Assign any extra official duty to any Secretariat officers

(7) The Local NUGS Secretary shall:

- (a) Furnish the Student body with information on the activities of the NUGS after every NUGS meeting within fourteen (14) days after the said meeting.
- (b) Be responsible for the day to day running of the Local NUGS Secretariat.
- (c) Perform any other functions assigned him by the Local NUGS President.

(8) The Local NUGS Treasurer shall:

- (a) Be the Custodian of the secretariat's money
- (b) Within 72 hours place all money received in the secretariat's bank account
- (c) Disburse money, as directed by the local NUGS President and must be in conformity with the approved budget of the secretariat
- (d) Keep true records of all financial transactions of the local NUGS secretariat
- (e) Be accountable to the Local NUGS secretariat and the SRC
- (f) Have custody of the secretariat's cheque books and cashbooks; and shall keep all monies in the bank.

(9) The Women's Commissioner shall:

- (a) Be the head of the Women's Commission.

- (b) Be a member of the Local NUGS Secretariat.
- (c) Be responsible for organizing all women's activities.
- (d) Represent the Women's Commission at NUGS meetings.
- (e) Organize the Women's week every academic year.

(10) The Faculty Representatives shall:

- (a) Represent the students at their respective faculties at council meetings.
- (b) In consultation with the President(s) of the Recognized course associations coordinate activities of student programmes at the faculty levels.

(11) The Public Relations Officer shall:

- (a) Be the Publicity Officer of the SRC.
- (b) Be the Editor-in-Chief of the SRC.
- (c) In consultation with the SRC answer all questions.
- (d) In consultation with the SRC encourage members of the Student body to desist from any form of unruly behaviour unworthy of praise and emulation, through articles, illustrations, etc.
- (e) Together with the Editorial Board be responsible for the publication of the SRC Magazine and all other publications.
- (f) Present financial estimates of the Editorial Board to the SRC Executive Council.
- (g) The PRO shall present an SRC calendar for the semester by the second week of each semester in consultation with all the bodies concerned.

(12) The Speaker of the LA shall:

- (a) Preside over all LA sittings.
- (b) Administer the Oath of Allegiance and Oath of a Member of Legislative Assembly.
- (c) In consultation with the SRC President draw the agenda and summon Members to the sittings of the LA
- (d) Together with the Clerk sign all minutes of all LA sittings.
- (e) Have no casting vote.
- (f) Act as the Chief Executive of the SRC in the absence of the SRC President and SRC Vice President.

(13) The Chief Justice shall:

- (a) Be the Chairman of the Judicial Committee.
- (b) Be a member of the Appellate Body.

- (c) Administer the Oath of Offices for incoming executives.
- (d) Be the chief arbitrator for students.
- (e) Together with the SRC President represent the SRC in the event of a writ issued against the SRC.
- (f) Act as the Chief Executive of the SRC in the absence of the SRC President, SRC Vice President and the Speaker.

CHAPTER FIVE**COMMITTEES OF THE SRC****ARTICLE 10; COMMITTEES OF THE SRC**

10. (1) The SRC shall have the power to create standing and/or ad-hoc committees to deal with matters in pursuance of its aims. The following SRC Standing Committees (except the Ad-hoc Committees) shall be established or formed within the Student body;

- (a) Welfare Committee
- (b) Entertainment Committee
- (c) Sports and Games Committee
- (d) Finance and Development Committee
- (e) Editorial Board
- (f) Transport and Management committee
- (g) Ad-hoc Committees

(2) WELFARE COMMITTEE;

- (a) There shall be established a student Welfare Committee comprising-
 - (i) The Welfare Chairman
 - (ii) The Welfare Chairpersons of the various Halls of Residence
 - (iii) Three (3) representatives from the Non-Resident Students Committee
 - (iv) One (1) representative from International Students' Association (ISA)
- (b) The Welfare Chairman shall be appointed by the SRC President subject to the approval of the Legislative Assembly.
- (c) The **functions** of the committee shall be to:
 - (i) Find solutions to matters relating to the general welfare of the students
 - (ii) Be in liaison between the students and the University Sanitary Office.
 - (iii) Liaise with the SRC cadet to ensure the general security of the students.
 - (iv) Liaise with the canteen committees of the various JCR's to monitor the operations of all canteen service providers and food vendors on campus.
 - (v) Ensure that standard medical services are rendered to students on campus.

(3) ENTERTAINMENT COMMITTEE;

- (a) There shall be established a student Entertainment Committee comprising -

- (i) The Entertainment Committee Chairman who shall be appointed by the Executive council subject to the approval of the LA
 - (ii) The Entertainment Chairmen from various Halls of Residence.
 - (iii) Two (2) representatives from the Non-Resident Students Committee.
 - (iv) The UMEX Committee Chairperson
- (b) The **functions** of the committee are that it shall:
- (i) Co-ordinate the entertainment activities of the SRC.
 - (ii) Be responsible for the planning of SRC-sponsored entertainment and development activities in this University such as SRC week.

(4) **SPORTS AND GAMES COMMITTEE;**

- (a) The committee shall comprise:
- (i) The Sports and Games Chairman who shall be nominated by the Executive Committee subject to the approval of the LA
 - (ii) The Deputy Sports Chairman who shall preferably be a female
 - (iii) The Sports and Games Chairmen of the various Halls of Residence
 - (iv) The captains of the recognized sports disciplines.
 - (v) The head of the Students' Supporters Union (Chief Blaster) of the University.

The chairman shall represent the student body on the University Sports Union.

- (b) The **functions** of the committee shall be to:
- (i) Organize all SRC sponsored sporting activities in and outside the University and submit its report to the executive council and LA
 - (ii) Recommend outstanding sportsmen for awards.

(5) **FINANCE AND DEVELOPMENT COMMITTEE**

- (a) There shall be established a five (5) member finance and development committee including the treasurer of the SRC who shall be the Chairman.
- (b) It shall include the Financial Secretaries of the various Halls of residence.
- (c) The rest of the members shall be appointed by the Treasurer subject to the approval by the Executive Committee.
- (d) Keep records of all assets or properties of the SRC, recommend the movement of some assets of the SRC and also keep record of the movement of these assets.

- (e) Report to the LA on the misuse of any such facilities or properties by any officer or student as the case may be.
- (f) It shall be responsible for seeking sponsorship and for all fundraising activities on behalf of the SRC.

(6) EDITORIAL BOARD;

- (a) There shall be established under the SRC an editorial board which shall comprise the PRO and four (4) others appointed by the Executive Council in consultation with the PRO and subject to the approval of LA
- (b) The composition of the board shall to a large extent respect halls and faculties representation.
- (c) As **functions**, the Editorial board shall:
 - (i) Be responsible for the publishing of all SRC sponsored publications including students' newspaper and journals.
 - (ii) Strategize and disseminate information on all SRC activities.
 - (iii) Perform any other functions as may be assigned to it by the Executive Council.

(7) TRANSPORT AND MANAGEMENT COMMITTEE

- a. There shall be an SRC transport Service and management Committee which shall comprise the following:
 - i. The SRC Treasurer who shall be the Chairman
 - ii. Transport Officer(s)
 - iii. SRC Driver
 - iv. One co-opted member
- b. They shall be responsible for the management, servicing and administration of the vehicles of the SRC and be responsible for the maintenance of cars within its jurisdiction.

(8) AD-HOC COMMITTEE;

The SRC shall form ad-hoc committee(s) to perform any function(s) as and when duly necessary.

A detailed report shall be submitted to the LA after the committee has duly completed the task given it. A copy of that report shall also be submitted to the Executive Council.

CHAPTER SIX**INDEPENDENT COMMISSIONS/COMMITTEES****ARTICLE 11; INDEPENDENT COMMISSIONS/COMMITTEES****11. (1) ELECTORAL COMMISSION;**

(a) There shall be an Electoral Commission who shall in conjunction with the Electoral Commission of Ghana be responsible for organising all SRC sponsored elections.

The Electoral Commission shall comprise the following:

- (i) The Electoral Commissioner
- (ii) One deputy Chairman
- (iii) The Secretary
- (iv) Electoral Commissioners of the Halls of residence
- (v) One member from the Non-Resident Students' Committee
- (vi) One representative from each faculty
- (vii) One co-opted member

The applicants of the Commission shall be appointed by the Judicial Committee, except the representatives from the halls of residence and the member from the Non-Resident Students' Committee. If less than six (6) applicants apply, the members of the Commission shall be approved by the Judicial Committee on recommendations from the Electoral Commissioner.

(b) The Electoral Commission shall have the following **functions**;

- (i) To compile the register of voters and revise it at such periods as may be determined by this constitution.
- (ii) To demarcate the electoral boundaries for all SRC elections.
- (iii) To conduct and supervise all elections and referenda.
- (iv) To educate the people on the electoral process and its purpose.
- (v) To perform such other functions as prescribed by this constitution.

(c) **General Elections;**

- (i) Every student of University of Mines and Technology has the legitimate right to exercise his or her franchise.
- (ii) The following officers of the Executive Council shall be elected by popular secret ballot by the general student body;
 - The SRC President

- The General Secretary
- The Treasurer
- The Local NUGS President
- Local NUGS Secretary
- Local NUGS Treasurer
- Women's Commissioner
- Faculty Representatives

However the faculty representatives on the council shall be elected at the faculty levels only.

- (iii) General elections shall be held within the **10th week** of the second semester in an academic year. All other elections of registered associations, JCRs and the clubs shall be organised before the SRC general elections.
- (iv) All offices shall be held for one academic year and any retiring officer shall be eligible for re-election subject to satisfying all relevant provisions of the constitution.

(d) Conduct of Elections;

The following regulations shall apply in all SRC sponsored elections:

- (i) A simple majority is required to win an election.
- (ii) Candidates who stand unopposed shall require at least 50% +1 of the valid votes cast to win the position thereof.
- (iii) In the event of a tie, fresh elections shall be held for the candidates involved.
- (iv) Subject to the approval of the Judicial Committee, the Electoral Commissioner shall be empowered to add any other rules accepted by the Electoral Commission of Ghana that he deems necessary to ensure the smooth running of elections.
- (v) Any candidate who shall be guilty of an electoral offence shall be withdrawn from the elections and referred to the Judicial Committee for appropriate sanctions.
- (vi) Where irregularities are detected at any polling station during voting, the results from that polling station shall be declared null and void by the Electoral Commissioner and fresh elections conducted for all eligible voters at that polling station within seventy-two (72) hours.
- (vii) Electoral procedures on which this constitution is silent shall be referred to the Judicial Committee and the Electoral Commission of Ghana whose ruling shall be final.
- (viii) Printed ballot paper with a list of candidates contesting, and their respective posts shall be made available to all voters and each voter shall be entitled to one ballot paper.

A list of candidates contesting for various posts shall be displayed at every polling station with their passport sized photographs.

- (ix) All manifesto reading and debates should be done by, at least, three (3) days preceding the elections, and any other form of campaigning should cease twenty-four (24) hours to the elections.
- (x) If the office(s) of the General Secretary and/or Treasurer is/are vacant at the close of nomination period, the nomination time shall be extended by twenty-four (24) hours and the student body duly notified. If there still remains the vacancy after the twenty-four (24) hour extension, the elections shall proceed and the SRC president elect shall within seven (7) days of his election appoint the Executive officer(s) to be approved by the Student body in a referendum.

However, if the post of the SRC President is vacant at the close of the nomination period, the nomination time shall be extended by forty-eight (48) hours and the student body duly notified. If the post still remains vacant after the stipulated time, the outgoing Executive Council shall appoint a member from the student body who shall be approved by the general Student body through a referendum.

- (xi) Voting shall be at the polling stations which shall be determined by the Electoral Commissioner and shall be from the hours of 07:00GMT to 15:00GMT. The Electoral Commissioner shall after counting declare provisional results. After the elections, all electoral disputes should be directed to the Judicial Committee and Electoral Commission of Ghana for redress within 72 hours
- (xii) All posters used for campaigning must be removed by midnight on the eve of the voting day.
- (xiii) The old officers shall hand over power to the new officers within fourteen (14) days after declaration of election results.
- (xiv) All elections shall be by secret ballot and every voter shall provide his university Student's Identity Card before he will be allowed to vote.
- (xv) The voters register should be displayed on all SRC and JCR(s) notice boards, **at least a week to the elections**, for the perusal of students and irregularities reported to the Electoral Commissioner for the necessary corrections to be effected.
- (xv) The Elections shall be supervised by the Electoral Commission of Ghana and Representatives from independent bodies i.e. UTAG, GRASAG, TEWU shall be invited to act as external and independent observers during the elections.

(xvi) All ballot papers for SRC elections shall be procured by the Electoral Commission of Ghana.

(xvii) SRC shall foot bills from Electoral Commission of Ghana

(e) Eligibility;

- (i) A Student in the University is eligible for election provided he is not in his first or final year of study.
- (ii) Nomination papers shall be in duplicate and shall be collected from the Electoral Commissioner.
- (iii) A candidate shall be nominated by one member of the student body and then seconded by another and the candidate shall assent to his nomination by his signature.
- (iv) A copy of the nomination papers shall be deposited with the Electoral commissioner. Candidates shall keep the second paper.
- (v) Any student who wishes to stand for elections conducted by the SRC shall submit himself to the Vetting Committee, which shall be formed by the Judicial Committee, for thorough vetting. Notwithstanding any provision in this constitution, the Vetting Committee shall be required to give a full report on all candidates so vetted to the Judicial Committee at a reasonable time (at most five (5) days after vetting).

The Vetting Committee shall be a five (5) member committee comprising of members nominated and voted on by members from the Judicial Committee. The members of the Vetting Committee shall appoint a Chairman and report to the Judicial Committee within twenty four (24) hours. The Judicial Committee Chairman shall not be a member of the Vetting Committee.

- (vi) Any student who qualifies to contest elections and intends to contest any position shall make available two (2) passport-sized photographs of himself accompanied with duly filed nomination forms and CV to the Electoral Commissioner not later than a date and time specified by the Electoral Commissioner.
- (vii) The presidential candidate shall submit an action plan in addition to the duly filed nomination forms and CV to the Electoral Commissioner
- (viii) The candidates contesting for the position of the President shall declare their running mates seventy-two (72) hours before vetting.

- (ix) There shall be an observer who shall be invited by the Vetting Committee. The observer (*who shall be a Senior Hall Tutor*) shall be nominated by the Dean of Students. He shall not participate in the entire vetting process.

(f) Disqualification;

A candidate shall be disqualified from an election held under this constitution where:

- (i) He has been declared by the findings of the Judicial Committee to be incompetent to hold any position or office in the University.
- (ii) He has been voted out of any office in this University for stated misconduct.
- (iii) He has been found guilty of embezzlement, misappropriation of Students or University Funds and or has wilfully behaved in a manner as can be described as detrimental to this University as a whole by the findings of a Judicial Committee or accredited University body.
- (iv) He has not fully paid his SRC dues and any other such financial obligation(s) to the SRC.
- (v) He contravenes any of the procedures in this Article concerning eligibility of elections.

(g) Bye-Elections;

- (vi) Without prejudice to the provisions of this constitution, relevant bye-elections shall be held to fill vacancies created by virtue of any provision provided that any office(s) in the Executive Council is vacant and the provisions of Chapter Six apply.
- (vii) The bye-election shall be held within two weeks of the creation of such vacancy.
- (viii) No member of the SRC shall be eligible to contest a bye-election without first resigning from his office.
- (ix) In any bye-election, unopposed candidate shall require fifty percent (50%) +1 votes of total valid votes cast.

(h) **Challenging Elections;**

(i) The provisional results of an election shall after it has been published be challenged within seventy-two (72) hours. No petitions shall be entertained after 72 hours.

(ii) Any petition shall be presented to the Judicial Committee.

(iii) The Judicial committee shall without any prejudice to any provision in this constitution, decide on the merits of the petition within forty-eight (48) hours upon receipt of the petition. The petitioner will forward the matter if he/she is not satisfied to the Appellate Body who would adjudicate the final verdict.

(2) **WOMEN'S COMMISSION;**

(a) There shall be established a Women's Commission comprising -

- i. The SRC Women's Commissioner
 - ii. A representative from each registered course association
 - iii. A representative from a recognized women association(s)
 - iv. A representative from the Non-Residents Students Committee
 - v. A representative from the JCR(s)
- who shall all be females.

(b) The **functions** of the Women's Commission are:

- (i) They shall promote the interest and rights of women on campus.
- (ii) They shall encourage active participation of female students in leadership positions, roles, and SRC activities and inculcate in the female students a sense of inclusion, belonging and solidarity.
- (iii) They shall create a link between female students on campus and women's groups with the aim of sharing ideas and strategies on related issues.
- (iv) They shall undertake any other activities or functions assigned to the commission by the SRC.
- (v) They shall in consultation with the Welfare Committee administer first aid to female students when needed.

(3) NON-RESIDENT STUDENTS' COMMITTEE;

(a) There shall be established a Non-Resident Students' Committee (NRSC) comprising-

- (i) The Chairman
- (ii) The Secretary
- (iii) The Organizer
- (iv) A representative from each recognized Hostel

The Chairman shall appoint the Secretary, and the Organizer of the committee.

The Chairman shall make representation for the committee in the SRC Executive Council and the Secretary, the Organizer and one other member shall also make representation for the committee at LA

(b) The **functions** of the NRSC shall be to:

- (i) Co-ordinate the affairs of the Non-Resident Students.
- (ii) Co-ordinate all activities of the various recognized hostels and report to the executive council.

The Chairman in consultation with the Committee shall appoint some non resident student members to make representations to the various SRC Committees unless otherwise stated.

(4) PRESIDENTIAL ADVISORY COMMITTEE;

(a) There shall be established a three (3) member Presidential Advisory Committee comprising-

- (i) The Leading Opposition Leader. In case there is none, the SRC President shall appoint a member from the student body.
- (ii) The immediate past SRC President. In case there is none available, any member of the previous Executive Committee.
- (iii) Any other person appointed by the SRC President. The committee shall advise the President on all matters.

CHAPTER SEVEN

ADMINISTRATION OF FUNDS

ARTICLE 12; ADMINISTRATION OF FUNDS

12. (1) Withdrawal of Funds

- (a) The use of funds shall be restricted or limited to the organization of SRC activities, functions, and programmes approved by the LA and administrative expenses.
- (b) The signatories to the Account(s) shall consist of the SRC President, the University Finance Officer and the Treasurer.
- (c) All monies withdrawn from the SRC Account must be recorded by the Dean of Students' Affairs and the Treasurer stating the purpose, the date of signing the cheque, and the cheque number for auditing purposes.
- (d) Any transaction, project, programme or activity approved by the LA shall be continued by a succeeding SRC.

(2) Budget

- (a) The budget of the SRC shall be presented to the Executive Council within ten (10) days of the first semester for approval. Upon approval by the Executive Committee, the budget will be published for the information of the general students' body.
- (b) The budget shall be presented to the Speaker and a meeting shall be called for such purpose. The LA shall prove the budget within seven (7) days. Copies of the approved budget shall be deposited at the offices of the University Finance Officer and the Dean of Students' Affairs.

(3) Auditing

- (a) The LA shall appoint five (5) students who shall be non-members of the Executive Council to become members of the Audit Committee, which would be a standing committee of the LA

- (b) The committee shall be formed at the first sitting of the LA
- (c) The committee shall, at its first meeting, elect a Chairman and a Secretary to keep records of proceedings of their meetings.
- (d) For the avoidance of doubt, the Audit Committee shall undertake auditing at the end of the semester and submit each report to the LA copied to the President, all SRC and JCR notice boards, the University Finance Officer and the Dean of Students' Affairs.
- (e) They shall be required to present the Audit report to the LA at the second and last sitting of the first semester and at least fourteen (14) days before the handover ceremony of the Executive Council.
- (f) The auditors shall prior to the commencement of their activity receive training from the University Auditors
- (g) Auditing shall be done under the guidance of the University Auditors. The entire Audit team shall have access to all books, records, returns and other documents relating or relevant to the accounts of the SRC.
- (h) The President and/or LA shall have the mandate to call for auditing of any executive office or committee and a report submitted at any time as required.
- (i) Where the Audit report shall prove beyond reasonable doubt that a person or group of persons is/are involved in any fraud or embezzlement of SRC funds or is in illegal possession of SRC property, or important documents, he or they by this Constitutional Declaration shall be prosecuted under the criminal laws of the Republic of Ghana, unless such an amount, property or document is refunded within seventy-two (72) hours after reading of the audit report to the LA

CHAPTER EIGHT

MEETINGS

ARTICLE 13: GENERAL MEETINGS

13. (1) (a) GENERAL MEETINGS;

- (i) There shall be a general meeting within fourteen (14) days of the first semester at which the Executive Council shall present a policy speech.
- (ii) There shall be at least a general meeting every semester (excluding the policy speech meeting) where the president shall listen and provide answers to issues bothering the student body.
- (iii) In relation to the above sub-clause, the general meeting of the newly constituted Executive Council, with respect to listening and providing answers to issues shall begin from the next academic year.
- (iv) Notwithstanding any provision of this constitution, the president may convene a meeting at any time and for any purpose that to him shall be deemed fit.
- (v) A general meeting shall be deemed to have been duly convened with at least forty-eight (48) hour notice specifying date, place, time and agenda for the meeting.
- (vi) In case of special/emergency meeting, at least twenty-four (24) hour notice specifying date, place, time and agenda is required.
- (vii) The Student body may call for a general meeting provided 12% of members of the student body append their signature to the summon and a **prior notice** is sent to the President with an agenda stating their intention to summon such a meeting.
- (viii) The President shall comply with such request within forty-eight (48) hours on receipt of the notice requesting for the meeting.

(b) QUORUM;

- (i) The quorum for a general meeting of the student body shall be constituted by one-tenth (1/10) of the members of the student body present at the venue of the meeting, two (2) of whom shall be SRC Executive Committee members.
- (ii) In case of special/emergency meeting, the presence of the President and General Secretary shall be enough to begin the meeting if a quorum is not obtained.

- (iii) If at any meeting a quorum is not obtained after forty-five (45) minutes, the meeting shall be adjourned and shall be called again within forty-eight (48) hours to discuss the very business for which there was no quorum.
- (iv) If there is no quorum for two (2) consecutive meetings, a third meeting shall be convened after twenty-four (24) hours of the last meeting and shall proceed in the absence of a quorum notwithstanding any provision of this constitution.
- (v) Notwithstanding any provision of this constitution, any decision(s) taken shall be binding on every student.

(2) (a) EXECUTIVE COUNCIL MEETINGS;

- (i) The Executive Council shall meet at most thrice (3) a semester.
- (ii) The SRC President shall convene any emergency meeting when the need arises.
- (iii) The SRC President, General Secretary and three (3) other members shall form a quorum.
- (iv) A simple majority of members present by voting or by popular acclamation shall be required to take decisions at meetings.
- (v) An emergency meeting may likewise be called on the request of five (5) members of the Executive Council, who shall subscribe their names and signatures to a written request, stating the issue to be considered at the meeting; and the SRC President shall be obliged to such a request and convene it.

(3) (a) LEGISLATIVE ASSEMBLY MEETINGS;

- (i) Meetings shall be held at most three (3) times a semester.
- (ii) Members of the legislative assembly shall be notified of the meeting at least five (5) days before such meetings, and such notice shall be communicated through any appropriate means of communication.
- (iii) The Speaker shall convene an emergency meeting of the legislative assembly when the need arises. Notices for emergency meeting shall be at least two (2) days before such meetings, and such notice shall be communicated through any appropriate means of communication.

- (iv) Notwithstanding the two sub- clauses supra, all notices for such meetings shall be posted on the notice boards for the general consumption of the entire student body.
- (v) The quorum of a meeting shall be the speaker, the clerk and half (1/2) of the total membership of the Legislative Assembly.
- (vi) All proceedings and decisions of meetings shall be communicated to the entire student body within five (5) days.
- (vii) All decisions of the meetings shall be determined by a simple majority of members present by voting or by popular acclamation except those concerns clearly stated in this constitution.
- (viii) In a case of less than two-thirds (2/3) majority of members present at an LA meeting, by motion the Legislative Assembly shall empower itself and take decisions on issues excluding approval of budget, impeachment and any special resolution as may be determined by this constitution.

(b) Code of dressing for the legislative Assembly Meetings;

- (i) The dress code for all the members of the Legislative Assembly for meetings shall strictly be official and formal.

CHAPTER NINE

STANDING ORDERS

ARTICLE 14; STANDING ORDERS FOR MEETINGS

14. (1) VOTING

- (a) Voting shall be by fully accredited members and each member shall be entitled to one vote.
- (b) Voting shall include the right of members to make or second motion(s).
- (c) Voting shall be carried out by a simple majority, except where stated otherwise in this constitution.
- (d) The casting of vote shall be in the following order: Voting for, Voting Against and Abstaining. If the votes for and against an issue are equal in number, another vote is cast. In the event of a second tie, the Chairman shall then cast his vote. The members abstaining shall be considered non-voting. In the case of the LA, where the vote of any motion is equal, the Speaker is to open the floor for a further debate after which voting shall be done again. In the event of a second tie, the motion is taken to be lost.
- (e) Voting shall be by secret ballot in the case of the formation of a standing committee, Electoral Commission, Impeachment and any or all matters which are politically inclined.
- (f) Notwithstanding the immediate preceding sub-clause (e), voting shall be by show of hands or as shall be determined by the Chairman, unless otherwise stated in this constitution.

(2) MOTIONS

- (a) All full members have the right to file motions. However, in the case of the LA, observers can file motions or proposals only when such motions are seconded by at least three (3) members of the LA and that such motions shall be in writing and submitted to the Speaker.

- (b) All motions shall be submitted in writing and must be handed over to the Chairperson.
- (c) No motion(s) or amendment(s) of the same shall be opened for discussion until a full member of the student body has seconded it.
- (d) No matter shall be discussed except it concerns an approved subject for the agenda.
- (e) A motion shall be opened for discussion or amendment after the proposer and seconder have had the opportunity to speak in support of the motion. The debate must be limited to the immediate pending question by the chair. The Chairperson shall rule out-of- order any speaker failing to adhere to the subject under discussion.
- (f) No motion(s) or amendment(s), which has/have been accepted by the meeting, shall be withdrawn without the consent of the meeting; neither shall any addendum be made to a motion once accepted without such consent.

(3) AMENDMENTS

- (a) An amendment like a motion, must be moved, seconded and discussed in accordance with the procedure for motions outlined above.
- (b) No amendments shall be moved which by the Chairperson's ruling rescinds, negates, or destroys the original motion.
- (c) The mover and seconder of a substantive motion shall have the right to accept an amendment and if accepted, shall be discussed until the amendment under consideration has been disposed off. It is however, permissible for notice of further amendment to be given during discussion of the original amendment.
- (d) If an amendment is rejected, other amendment(s) may be moved on the original motion. If an amendment is carried, the motion as amended shall become the motion and shall be the question to which any further discussion may be addressed or upon which final vote is taken.

(4) ORDER OF PRECEDENCE

- (a) The Chairperson shall allow the following procedural motions to be put when there is already a proposition on the table in the following order of precedence:
- (i) Motion to withdraw a motion
 - (ii) Motion to recess
 - (iii) Motion to reverse the decision of the Chair
 - (iv) Motion that a question or a proposal not be put now
 - (v) Motion to limit or expand debate to a certain specified period of time
 - (vi) Motion to refer the matter to a committee or sub-committee for investigation
 - (vii) Motion to close debate and
 - (viii) Motion that the motion be now voted upon.
- (b) If the motion that the motion be now voted upon has been seconded, no further discussion of the original question shall be allowed; if the motion is carried, only the proposer of the original question under discussion shall be allowed to speak before the original question is put to vote.
- (c) If the motion to “limit debate to a specified period of time” is carried, the Chairman shall draw up a list of those wishing to make their first speech on the subject and allow each one an equal proportion of the specified period. The proposer shall be allowed a maximum of 5 minutes to sum up before the original motion shall be put to vote.
- (d) Should any procedural motion be defeated, 20 minutes shall elapse before such a motion can be accepted again by the Chair, unless the Chair is of the opinion that the circumstances have materially altered in the meantime.

(5) INTERVENTIONS

- (a) In addition to discussions to an issue, the Chairperson shall recognise these requests from the floor by the following order of precedence:
- (i) Point of Order
 - (ii) Point of Correction
 - (iii) Point of Information

- (b) A point of order must be heard at all times except during the act of voting. It must deal with the conduct of procedure of the meeting and concern only such matters as indecorum, transgressions of standing orders, transgression of the Constitution, calling attention to the introduction of a matter not relevant to the question under consideration and the use of improper language.
- (c) A point of correction shall be a factual presentation seeking to correct a statement made by the last speaker and must be heard at all times except during the act of voting. It must be strictly related to the subject under immediate discussion.
- (d) When in the course of a meeting a member wishes to seek/give information from/to a speaker or the Chairperson, he may do so on a point of information. The Chairperson shall have the option to comply with, or to ignore the request.

CHAPTER TEN: HONOURARIUM**ARTICLE 15; HONOURARIUM**

15. (1)

- (a) Members of the SRC and or the Student body shall have the option to stay in the Hall during vacation provided the Senior Hall Tutor has granted permission.
- (b) Vacation residence fees and the cost of meals of SRC members and or any other Student(s) approved by the SRC to stay in its name shall be borne out of SRC funds, subject to the approval of the Dean of Students.
- (c) Certificate of Office, Performance and/or Prizes shall be presented to:
 - (i) Persons who have in any way contributed to the welfare of SRC and or Students of this University as may be determined by the SRC, and such persons could be students, workers, philanthropists, etc.
 - (ii) Members of the SRC upon successful completion of their tenure of office and this shall be done during the handover ceremony.
- (d) The Executive Officers, Speaker, Chief justice, and the Electoral Commissioner shall be issued with identity cards identifying them as such. The identity cards shall be the property of the SRC and shall be issued by the SRC.
- (e) SRC members or other students of this university that the SRC might find necessary shall have preference over certain directives, which might directly facilitate efficient performance of their duties (e.g. Allocation of single rooms).
- (f) Any SRC member and or anyone who abuses this privilege shall forfeit this privilege.
- (g) Notwithstanding any provision of this constitution, any nomination for the award of any prize(s), certificates, etc. to any person shall be approved by the SRC.
- (h) Notwithstanding any provision of this constitution, the following categories of people shall not be awarded any certificate or prize:
 - (i) Officers and persons who have resigned their post (except when for the purpose of contesting in an SRC election).
 - (ii) Officers under suspension.
 - (iii) Persons against whom adverse findings have been established.

- (i) The Executive Committee shall be entitled to monthly allowance which shall be determined by the Finance and Development Committee and approved by the Legislative Assembly as part of the annual budget. The Executive Council shall be entitled to any sitting allowance.
- (j) The Finance and Development Committee shall determine other honoraria as and when deemed necessary and shall be approved by the Legislative Assembly.
- (k) The per diem of an Executive or any other person on the errands of the SRC shall not exceed 50% of the Executive allowance, but the discretion of the Finance and Development Committee shall come to play, depending on the weight of the duty or task or distance travelled.

(2) INDEMNITY

Members of the SRC or any other student shall be reimbursed out of the SRC funds against any indebtedness incurred exclusively for and on behalf of the SRC. Such indebtedness shall be proven to have been incurred in the legitimate use of the office and shall be in line with the execution of duties as specified under this constitution or any resolution of the Legislative Assembly.

CHAPTER ELEVEN**REMOVAL FROM OFFICE****ARTICLE 16; REMOVAL FROM OFFICE****16. (1) Resignation;**

- (a) Any member of the SRC shall communicate his resignation to the respective head of the three (3) working bodies of the SRC in writing seven (7) days before the day of resignation.
- (b) The head of that body of the SRC shall make such resignation known to the general student body within four (4) days on receipt of this letter of resignation as well as copy the Chief Justice.
- (c) In a situation of an en bloc resignation of the executive officers, they shall communicate their resignation to the Judicial Committee through the Chief Justice and copied to the Legislative Assembly through the Speaker.
- (d) The Chief Justice shall convene an SRC meeting within seven (7) days on receipt of such resignation with respect to the preceding paragraph and shall form an Interim Management Committee of the Executive Council until fresh elections are held.
- (e) Any officer vacating his post shall handover all documents and properties of the SRC to the Executive Council within twenty-four (24) hours. However, if the Executive Council resigns en bloc, it shall handover all documents and properties of the SRC in their possession to the Judicial Committee within forty-eight (48) hours of their resignation.

(2) Grounds of Removal;

An Executive Council member shall be removed from office if found in accordance with the provision of this article:

- To have acted in wilful violation of the oath of office set out in this constitution or in any violation of any provision of this constitution.
- To have embezzled or misappropriated funds of the SRC.
- To have conducted himself in a manner that brings or is likely to bring the name of the SRC or the University into disrepute or ridicule.
- To be inefficient or negligent in the discharge of his duties.

- To be incapable of performing the functions of his office by reason of infirmity of mind or body.
- To have deferred his course of study.

(3) Impeachment;

- Any student may give notice in writing addressed to the Judicial Committee to commence impeachment proceedings against any elected officer provided that such notice shall be authenticated by the signatures of at least ten (10) students from each department. In the case of faculty representative, a student from that faculty may give notice in writing addressed to the Judicial Committee provided that such letters shall be authenticated by at least forty (40) students from the faculty with their signatures. In the case of the Women's Commissioner, fifteen percent (15%) of the total female population need to append their signatures to the said petition written by a female student.
- The Judicial Committee shall within seven (7) days upon receipt of the notice of impeachment examine and publish its report on the issue. If there is any merit for impeachment, the report shall be submitted to the Legislative Assembly and posted on all notice boards for the consumption of the entire student body.
- Copies of the petition shall be sent to respective officer(s) or member(s) as in the preceding paragraphs three (3) days before meeting the Members of the Legislative Assembly on the floor of the house.
- Such officer(s)/member(s) shall be given the chance to defend himself or themselves by oral or written statements before a vote of no confidence is cast.
- Any such officer(s)/member(s) shall lose all benefits and /or honors given or to be given to him/ them, if impeached.
- The said member of the Executive Council shall have the right to appeal to the Judicial Committee.

(4) Vote of No Confidence;

Notwithstanding and without any prejudice to this constitution, the said officer(s)/member(s) against whom impeachment charges have been preferred shall be officially removed from office on the passing of a vote of no confidence by at least two-thirds (2/3) majority of the entire membership of the Legislative Assembly

and be supervised by Speaker, Chief Justice in consultation with the Electoral Commission.

(5) Removal of a Member of the Legislative Assembly;

- A programme year of a particular class shall have the power to withdraw or remove its representative in the Legislative Assembly provided such exercise shall be effected through a resolution properly passed by the said class of the programme year.
- The Speaker shall have the power to suspend any member upon stated misbehaviour, and that member shall have the right to appeal to the Judicial Committee.
- The Legislative Assembly shall have the power to expel any member upon stated misbehaviour which shall obtain the approval of one-half (1/2) of the members present and voting, and provided that such a member shall have the right to appeal to the Judicial Committee.
- Notwithstanding any provision of this constitution, a person shall cease to be a Member of the Legislative Assembly;
 - Where he is adjudged to have embezzled funds or recklessly handled the finances of the SRC; or
 - Where he is found to be inefficient or negligent in the discharge of his duties.
- A class of a programme year shall have the power to fill any vacancy created by virtue of this article in accordance with the provision of this constitution.

CHAPTER TWELVE

AMENDMENTS

ARTICLE 17; AMENDMENTS

17. (1)

- (a) Any part(s) or section(s) or clause(s) and or article(s) of this constitution shall be subject to alteration(s).
- (b) Any member of the Student body may call for an amendment(s) to this constitution, and such amendment(s) shall bring a notice duly signed by at least thirty (30) Students from each faculty as agreeing to call for the amendment(s).
- (c) Any proposed amendment(s) of this constitution shall be delivered to the Judicial Committee and the Judicial Committee shall submit a copy of the proposal to the Legislative Assembly within seven (7) days on receipt of the proposal for discussion.
- (d) The Legislative Assembly shall upon receipt of the proposal, debate and adopt it by resolution of not less than three-quarters (3/4) majority of members present and voting.
- (e) After the adoption by the Legislative Assembly, a general student forum shall be organized by the Judicial Committee for further debate and adoption by three-quarters (3/4) majority of students present and voting.
- (f) For the purpose of any amendment(s) in part or whole to this constitution, a written notice on such proposed amendment(s) shall be published for the perusal of members of the student body at least seven (7) days before the day of meeting at which such proposed amendment(s) are to be discussed.
- (g) The entire Constitution shall not be amended or redrafted unless after six (6) years from the day of promulgation.

(2) POWER TO MAKE BYE-LAWS AND BILLS (ACTS)

- (a) Any member of the Legislative Assembly shall table a bill on the floor of the Legislative Assembly house under this constitution relating to matters of the student body for debate and adoption.

- (b) A copy of bye-laws shall be submitted to the Judicial Committee for thorough scrutiny and the committee shall have the right to make recommendations where appropriate. In the event of the Judicial Committee making the recommendations, the Legislative Assembly shall consider those recommendations and make corrections to the bill where appropriate.
- (c) The bye-law or bill shall be in writing and shall come into force, after approval by the Legislative Assembly by two-thirds (2/3) majority present and voting, when signed by the president of the SRC.

CHAPTER THIRTEEN**TRANSITION AND HANDOVER****ARTICLE 18; TRANSITION AND HANDOVER**

18. (1) The transition period shall be before, during and after handover ceremony.
- (a) Change of signatories to the incoming executive body shall be done at most two (2) days before handover.
 - (b) The Chief Justice together with the treasurer shall take the incoming Executive Council round to see movable and immovable assets of the SRC at least three (3) days before handover.
 - (c) All outgoing executive shall be responsible to give the needed orientation to the incoming executive body before handover.
 - (d) All necessary office keys and documents shall be handed over to the incoming executives at least three (3) days before handover.
 - (e) Without prejudice to any provision of this constitution, the Executive Committee shall, within thirteen (13) days on assumption of office, take stock of all assets of the SRC and shall present a report to the student body during the presentation of the policy speech.
 - (f) It is hereby declared that, all office documents and properties of the SRC shall be handed over to the officers concerned. Any outgoing officer who shall refuse to handover such documents or who shall be proved beyond reasonable doubt to have sneaked-out some important transitional documents shall by this declaration have violated his oath of office and shall therefore be dealt with in accordance with the laws.
 - (g) The incumbent SRC shall arrange and organise the handover ceremony in collaboration with the incoming executive within fourteen (14) days after declaration of election results.
 - (h) The handover shall be done in the presence of the student body and the university authorities.

CHAPTER FOURTEEN**MISCELLANEOUS****ARTICLE 19; MISCELLANEOUS**

- (a) The entire SRC shall be accountable to the Student body and shall individually and collectively be responsible to the Student body.
- (b) The SRC shall be responsible for organizing the SRC week celebration within the Second Semester each academic year.
- (c) The SRC shall orientate freshmen within two (2) weeks at the beginning of the academic year.
- (d) The SRC shall provide every freshmen of the university with a copy of the SRC constitution at the expense of the freshmen.
- (e) Any person or body of persons can for the purpose of contesting elections align themselves or form a common front.
- (f) No student shall serve on more than one office except otherwise stated in this constitution.

(2) CLUBS, SOCIETIES AND ASSOCIATIONS

- (a) There shall be two (2) categories of clubs and societies within the student population of this university;
 - (i) Recognized Course Associations, which come directly under the care of the university Authorities .e.g. MMESA, FESA, AGES, GESA, PESA, AMS etc.
 - (ii) Approved self-supporting clubs and societies e.g. Christian fellowships, Old Students' Associations, etc.
- (b) A new club or society shall be required to submit through the appropriate institutions of the SRC to the Assistant Registrar for Student and Academic Affairs of the university an application accompanied by ten (10) copies of their Constitution for approval/ recognition by the Dean of students.
- (c) No club or society shall function without the official approval/ recognition of the Dean of students. The SRC shall ban any unregistered Club, Association or Society etc. formed on campus.

- (d) The officers shall pass on all applications for registration to the Dean of students provided that the aims and objective of the club, societies etc. do not conflict with any provisions of this constitution.
- (e) All recognized or approved clubs; societies etc. shall have equal rights in the use of the university facilities as and when required.
- (f) Where SRC shall have a clash of programmes with any associations or club, the SRC shall have power to stop any such association's programmes. Offenders of this clause shall be referred to the Judicial Committee for appropriate sanctions.

(3) INTERPRETATION

The Judicial Committee shall have the power to rule on all matters on which the Constitution is silent or ambiguous and such ruling shall be expressed in precise terms and published in an annex to the constitution. Such ruling shall become precedent and binding on the SRC and the general Student body until amended or revoked in accordance with the provisions of this constitution.

In the construction of this Constitution, unless there is anything to the contrary in the subject or context thereto, the several words hereinafter mentioned or referred to shall have the meaning and include the following:

- “He”, “His” or “Him” shall refer to any person male or female.
- “Faculty Course” means any course(s) run at the Faculty Level and which are not preliminary courses.
- “JCR” means the Junior Common Room of the University of Mines and Technology, Tarkwa.
- “NUGS” means National Union of Ghana Students.
- “SRC” means the Students’ Representative Council of the University of Mines and Technology, Tarkwa.
- “Chairman” or “chairperson” shall refer to male or female chairing a committee or meeting.
- “Student” shall apply to a person enrolling in the University for a programme of study.
- “Oath” includes affirmation specified in the constitution.
- “Secret Ballot” means the use of paper or electronic means as determined by the Electoral Commission subject to the approval of the aspirants.

- “AGES” means Association of Geological Engineering Students.
- “AMS” means Association of Mathematics Students.
- “FESA” means Faculty of Engineering Students Association.
- “GESA” means Geomatic Engineering Students Association.
- “GMSA” means Ghana Muslim Students’ Association.
- “GRASAG” means Graduate Students Association of Ghana.
- “MMESA” means Mining and Mineral Engineering Students Association
- “PESA” means Petroleum Engineering Students’ Association
- “SCC” means Student Christian Council.

(4) INVITATION TO PROGRAMMES

- (a) The SRC President in consultation with other members of the Executive Committee shall have the power to nominate delegates, representatives or participants to any conferences, seminars or projects to which the SRC has been invited.
- (b) The delegates, representatives or participants shall present a written report to the Legislative Assembly through the SRC President, ninety-six (96) hours after such conference, seminars or projects.
- (c) The reports shall be published by the SRC secretary on all notice boards within three (3) days after its submission to the LA

ANNEX A: VACANT OFFICE(S)

- If an Executive office(s) is or are vacant after vetting of nominee(s), nominations shall be re-opened for such office(s). If the office(s) still remain(s) vacant, the election shall proceed and the elected Executive Council shall appoint the said officer(s) to be approved by the student body in a referendum.

- If any other office(s) remain(s) vacant after vetting, the elections shall proceed and the Executive Council formed shall appoint the officer(s) to be approved by two-thirds (2/3) of the student body and voting at a General meeting. The vote shall be by secret ballot.
- If the Office(s) of the Faculty Representative(s) is or are vacant after vetting, the election shall proceed and the Council formed shall appoint the said representative(s) to be approved the students of that faculty in a referendum.

ANNEX B: TRANSITIONAL PROVISIONS.

- A person who immediately before the coming into force of this Constitution held office shall be deemed to have been appointed or elected as far as is consistent with the provisions of this constitution to hold office under this constitution until expiration of his tenure of office. The existing Judicial Committee notwithstanding any provision in this constitution shall appoint Interim Officers to hold officers until new officers are elected.
- The Judicial Committee shall ensure that all organs, systems and structures or smooth running of the SRC are put in place within fourteen (14) days after the successful promulgation of this Constitution.

CHAPTER FIFTEEN**OATHS OF OFFICERS****PRESIDENTIAL OATH**

I,....., having been elected to the high office of the President of the SRC of University of Mines of Technology, in the name of the Almighty God (solemnly swear)/(solemnly affirm) that I will be faithful and true to the University; that I will at all times preserve, protect and defend the constitution of the SRC; and that I dedicate myself to the services and well-being of the students of the University and do right to all manner of persons. I further (solemnly swear)/(solemnly affirm) that should I at any time break this oath of office, I shall submit myself to the laws of this constitution and suffer the penalty there of. (So help me God).

To be administered by the incoming Chief Justice during the handing over ceremony.

VICE PRESIDENT OATH

I,....., having been elected to the high office of the Vice President of the SRC of University of Mines of Technology, in the name of the Almighty God (solemnly swear)/(solemnly affirm) that I will be faithful and true to the University; that I will at all times preserve, protect and defend the constitution of the SRC; and that I dedicate myself to the services and well-being of the students of the University and do right to all manner of persons. I further (solemnly swear)/(solemnly affirm) that should I at any time break this oath of office, I shall submit myself to the laws of this constitution and suffer the penalty there of. (So help me God).

To be administered by the incoming Chief Justice during the handing over ceremony.

OTHER OFFICERS OF THE EXECUTIVE COUNCIL OATH

I,....., having been elected to the high office of the.....of the SRC of University of Mines of Technology, in the name of the Almighty God (solemnly swear)/(solemnly affirm) that I will be faithful and true to the University; that I will at all times preserve, protect and defend the constitution of the SRC; and that I dedicate myself to the services and well-being of the students of the University and do right to all manner of persons. I further (solemnly swear)/(solemnly affirm) that should I at any time break this oath of office, I shall submit myself to the laws of this constitution and suffer the penalty there of. (So help me God).

To be administered by the SRC President during the handing over ceremony.

SPEAKER'S OATH

I,....., do in the name of the Almighty God (solemnly swear)/(solemnly affirm) that I will bear the true faith and allegiance to the SRC as by law established; that I will uphold the integrity of the SRC; that I will faithfully and conscientiously discharge my duties as speaker of the Legislative Assembly; and that I will uphold, preserve, protect and defend the constitution of the SRC; and that I will do right to all manner of persons in accordance with this constitution and the law and conventions of the General Council without fear or favour, affection or ill-will. (So help me God)

To be administered by the Chief Justice on the floor of the Legislative Assembly house.

JUDICIAL OATH

I,....., having been appointed as (Chief Justice or member of the Judicial Committee) do in the name of the Almighty God (solemnly swear)/(solemnly affirm) that I will bear the true faith and allegiance to the SRC as by law established; that I will uphold the sovereignty and integrity of the SRC; and that I will truly and faithfully perform the functions of my office without fear or favour, affection or ill-will, and that I will at all times uphold, preserve, protect and defend the constitution and law of the SRC and University respectively. (So help me God.)

To be administered by the outgoing Chief Justice during the handing over ceremony.

OATH OF ALLEGIANCE FOR COMMITTEE MEMBERS

I....., having been appointed as a member of the committee; do in the name of the Almighty God (solemnly swear)/(solemnly affirm) that I will bear the true faith and allegiance to the SRC as by law established; that I will uphold the sovereignty and integrity of the SRC; and the institution as a whole; I will preserve, protect and defend this constitution.

To be administered by the SRC President

OATH OF A MEMBER OF THE LEGISLATIVE ASSEMBLY

I., having been elected or appointed as a member of the Legislative Assembly for the, Academic year, do in the name of the Almighty God (solemnly swear)/(solemnly affirm) that I will bear the true faith and allegiance to the SRC as by law established; that I will uphold, preserve, protect, and defend the constitution of the SRC ; and that I will faithfully and conscientiously discharge my duties as a member of the legislative Assembly.

To be administered by the Speaker of the Legislative Assembly.

ADDENDUM

The following portion(s) were amended/added:

Article Six
 Article Seven
 Article Eight
 Article Nine
 Article Eleven
 Article Twelve
 Article Thirteen
 Article Seventeen
 Article Nineteen
 Chapter Fifteen

FIRST DRAFTED AND DRAWN BY THE FOLLOWING

1. Eric Azumah Auborough	Chairman
2. John Ernest Kwofie	Vice Chairman
3. Raymond Sugna Suglo	Secretary
4. Agyeman-Kusi Samuel	Assistant Secretary
5. Oscar Ofori	Assistant Secretary
6. Thomas Tuohinouh	Member
7. Charles E. Akanyui Aloiba	Member
8. Henry Paul Badu	Member
9. Appiah Paul Badu	Member

FIRST AMENDED AND REDRAWN BY THE FOLLOWING

1. Abdul Majeed Hamid	Chairman
2. Isaac Sefa Frank	Secretary
3. Solomon Sackey Osam	Member
4. Kweku Frimpong	Member
5. Eric Kofi Kudom	Member

SECOND AMENDED AND REDRAWN BY THE FOLLOWING

1. William Coleman	Chairman
2. Bernard Kumi Boateng	Co-Chairman
3. James Adu Nkansah	Secretary
4. Jerry Andoh	Public Relations Officer
5. Abubakor Is-hak Raf	Member
6. Alex Mac-Ocloo	Member
7. Ofosu Seth Birinkorang	Member
8. Elvis Ofori	Member
9. Aziz Sanda	Member
10. Sampson Asare	Member
11. Vincint Agyenim	Member

JUDICIAL COMMITTEE 2004/2005

1. Issaka Yakubu	Chairman
2. Tweneboah Collins	Secretary
3. Martin Beyuo	Member
4. Kwabena Dapaah	Member
5. Abakah Benjamin	Member
6. Seidu Mohammed	Member
7. Appiah Albert	Member

REVIEW COMMITTEE 2016/2017

1. Konadu-Yiadom Ernest	Chairman
2. Asebi Boakye Bofah	Secretary
3. Appiah-Nkansah Kofi	Member
4. Sineka Richard Kunujiang	Member
5. Osei Mensah Bonsu Isaac	Member
6. Adongo Micheal A.	Member
7. Julius Zuotaa	Member
8. Harriet Naakai Tetteh	Member
9. Wiafe Dominic Odame	Member
10. Ibrahim Kamaldeen	Member
11. Amponsah-Okyere Kofi	Member
12. Suwieh Prince Asare	Member

SRC JUDICIAL COMMITTEE 2016/2017

1.	Konadu-Yiadam Ernest	Chairman
2.	Asebi Boakye Bofah	Secretary
3.	Appiah-Nkansah Kofi	Member
4.	Sineka Richard Kunujiang	Member
5.	Osei Mensah Bonsu Isaac	Member
6.	Nkuah Dennis	Member
7.	Klughey Kenneth Attison	Member